

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

Index No.

-----X
JONEL MOISE,

Plaintiff,

**Date Summons
Filed:** day of

-against-

THE CITY OF NEW YORK; SUPERVISOR POLICE OFFICER
JOHN DOE # 1; POLICE OFFICER AARON LOHMAN; and
POLICE OFFICERS JOHN DOES # 1-5; the individual defendant(s)
sued individually and in their official capacities,

SUMMONS

Defendants
-----X

TO THE ABOVE NAMED DEFENDANTS:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the complaint of the plaintiff herein and to serve a copy of your answer on the plaintiff at the address indicated below within 20 days after the service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the Summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to answer, a judgment will be entered against you by default for the relief demanded in the complaint.

Dated: March 25, 2014
New York, New York

AMED MARZANO & SEDIVA PLLC

By:



Alexander Sediva, Esq.
Attorneys for the Plaintiff
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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

Index No.

-----X
JONEL MOISE,

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK; SUPERVISOR POLICE OFFICER
JOHN DOE # 1; POLICE OFFICER AARON LOHMAN; and
POLICE OFFICERS JOHN DOES # 1-5; the individual defendant(s)
sued individually and in their official capacities,

Defendants
-----X

Plaintiff JONEL MOISE by and through his counsel, AMED MARZANO & SEDIVA
PLLC, as and for his Complaint herein, alleges upon information and belief as follows:

JURISDICTION & VENUE

1. Within ninety (90) days of the incidents alleged in this complaint, Plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed.

2. More than thirty (30) days have elapsed since Plaintiff's demands and claims were presented to Defendant City of New York for adjustment and payment thereof, and the defendant has neglected and refused to make any adjustment and/or payment.

3. This action is being commenced within one year and ninety days of the date of the occurrence herein.

4. Venue is proper in the Supreme Court of the State New York, Queens County, because the acts in question occurred in the State of New York, Queens County, and the City of

New York is subject to personal jurisdiction in Supreme Court of the State New York, Queens County.

PARTIES

5. Plaintiff Jonel Moise is an African American and a resident of the State of New York, Queens County.

6. At all times referred to herein, Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated Plaintiff's rights as described herein.

7. Defendant City of New York was the employer of the individual defendants, and is and was at all times relevant to this complaint responsible for the policies, practices and customs of the New York Police Department ("NYPD") and the New York City Queens District Attorney ("NYCDA").

8. At all times alleged herein, defendant Supervisor Police Officer John Doe # 1 was a New York City Police Officer employed with the 113th Precinct, located in Queens County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

9. At all times alleged herein, defendant Police Officer Aaron Lohman ("PO Lohman"), (Tax Reg # 942071) was a New York City Police Officer employed with the 113th Precinct, located in Queens County, New York or other as yet unknown NYPD assignment, who violated Plaintiff's rights as described herein.

10. At all times alleged herein, defendants Police Officers John Doe # 1-5 were New York City Police Officers employed with the 113th Precinct, located in Queens County, New York or other as yet unknown NYPD assignment, who violated Plaintiff's rights as described herein.

11. The individual defendant police officers are sued in their individual and official capacities.

STATEMENT OF FACTS

THE INCIDENT

12. On or about the evening of March 1, 2012 Plaintiff was in a Popeye's restaurant located in the vicinity of 11725 Farmers Boulevard in the City and State of New York, County of Queens.

13. While standing on line in the restaurant waiting to pay for his meal, Plaintiff was approached by a group of NYPD police officers dressed in plain clothes.

14. Plaintiff is a native Creole speaker and has a limited command of the English language.

15. Despite the language barrier, the NYPD officers grabbed Plaintiff's food from him without explanation and began publically interrogating him about an allegedly stolen vehicle.

16. Plaintiff had absolutely no idea what the NYPD officers were aggressively questioning him about. He had no knowledge of the vehicle or criminal incident which they were falsely claiming he had been a part of.

17. Plaintiff feared for his safety, was entirely frightened by the circumstances, and generally unable to communicate with the overtly aggressive NYPD officers.

18. Plaintiff was publically humiliated and embarrassed by the NYPD officers' conduct and treatment of him.

19. No NYPD translator was brought to the scene to facilitate communication between the officers and Plaintiff.

20. Plaintiff was subsequently arrested in or about the vicinity of the aforementioned restaurant by Defendant Police Officer Aaron Lohman.

21. Defendant Officer Lohman and John Doe defendant officers committed excessive force against Plaintiff by maliciously, gratuitously, and unnecessarily grabbing him, and placing excessively tight handcuffs on him, which they did not loosen after Plaintiff requested that they do so.

22. Defendant Officer Lohman and John Doe defendant officers did not have an objective or reasonable basis to use any degree of force against Plaintiff, since he was unarmed, compliant, and did not resist arrest.

23. Plaintiff was physically injured as a result of the excessive use of force.

24. Defendant Officer Lohman and the John Doe defendant officers maliciously initiated a baseless prosecution against Plaintiff by drafting police reports and signing a criminal court complaint that falsely accused plaintiff of participating in alleged crimes.

25. Police Officer Aaron Lohman signed an accusatory instrument for the prosecution of Plaintiff Jonel Moise, dated March 2, 2012.

26. The sworn instrument alleged *inter alia* that Plaintiff unlawfully possessed and used a 2003 Black Jeep Liberty allegedly owned by Fazal Ali, subjecting Plaintiff to a malicious prosecution.

27. To this date, Plaintiff has absolutely no knowledge of Fazal Ali, his car or the alleged crime which he was falsely arrested and prosecuted for.

28. Subsequent to his arrest, Plaintiff was incarcerated for approximately two (2) days.

29. During his arrest and throughout his incarceration, Plaintiff was treated by the NYPD with excessive force causing harm and injury to his body.

30. Plaintiff complained to the NYPD of pain but was given no medical assistance.

31. Defendant Lohman and the NYPD had no evidence that any individual could identify Plaintiff as an individual involved in the alleged crimes.

32. Plaintiff identified multiple individuals who could attest that he was at work when the alleged crimes took place and, further, the identities of said individuals were duly provided to the Defendants.

33. Defendant Lohman lacked probable cause for the arrest of Plaintiff on March 1, 2012.

34. Plaintiff was prosecuted for Criminal Possession of Stolen Property in the Fourth Degree (Penal Law §165.45 (5)) and Unauthorized Use of a Vehicle in the Third Degree (Penal Law §165.05 (1)).

35. Throughout the investigation and prosecution, Plaintiff, maintained his innocence and told Defendants he was not involved in the alleged crimes. Nevertheless, Defendants persisted in aggressively prosecuting the matter against Plaintiff.

36. Defendants knowingly omitted and presented false evidence to support a false arrest and malicious prosecution against Plaintiff.

37. The prosecution of Plaintiff was initiated with malice.

38. The prosecution of Plaintiff was continued even though there was no probable cause to believe that Plaintiff had any involvement in any of the alleged and charged crimes.

39. Plaintiff made substantial efforts in proving his innocence in the matter, none of which were considered in discontinuing the matter.

40. As a consequence of the prolonged and baseless prosecution, Plaintiff lost job opportunities, was publically humiliated and expended his already limited resources on his defense.

41. After more than one year of numerous court appearances and conferences, the prosecution of Plaintiff was terminated in his favor.

42. On January 17, 2013, the charges against Plaintiff were subsequently dismissed in their entirety and matter was sealed by the Honorable Dorothy Chin Brandt, Queens County Supreme Court Justice.

43. The aforesaid violations of plaintiff's rights are not an isolated incident. Defendant City of New York is aware from lawsuits, notices of claim and complaints that many members of the NYPD are insufficiently trained on the proper way to investigate and prosecute crimes.

44. Defendant City of New York is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, the City of New York has failed to take corrective action. This failure caused the defendants to violate Plaintiff's rights and injure Plaintiff.

45. Moreover, Defendant City of New York was aware prior to the incident that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed. Despite such notice, defendants has retained these individuals, and failed to adequately train and supervise them.

46. At all times Defendant City of New York by the NYPD, and its agents, servants and employees, carelessly, and recklessly trained the individual defendants for the position of police officers and/or assistant district attorneys.

47. At all times Defendant City of New York by the NYPD, and its agents, servants and employees, carelessly, and recklessly supervised, controlled, managed, maintained and inspected the activities of the individual defendants.

48. At all times Defendant City of New York by the NYPD, and its agents, servants and employees caused, permitted and allowed the individual defendants to act in an illegal, unprofessional, and deliberate manner in carrying out their official duties and/or responsibilities.

49. At all times defendant City of New York by the NYPD, and its agents, servants and employees carelessly, and recklessly retained in its employ, the individual defendants, who were clearly unfit for their positions, who acted in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and responsibilities.

50. The occurrences and injuries sustained by Plaintiff, were caused solely by, and as a result of the malicious, reckless, and intentional conduct of defendant City of New York, NYCDA and the NYPD, and its agents, servants and employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained the individual defendants.

51. The plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

52. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

53. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

54. As a direct and proximate result of defendants' actions, Plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

55. The individual defendants, at times acted in concert, and at times acted independently in committing the aforementioned illegal acts against plaintiff.

**AS AND FOR A FIRST CAUSE OF ACTION:
FALSE ARREST & IMPRISONMENT UNDER FEDERAL LAW
(AGAINST INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK)**

56. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

57. On or about July March 2, 2012, Plaintiff was intentionally detained by the defendants.

58. Following his arrest, Plaintiff was incarcerated for a period of two (2) days.

59. In detaining the plaintiff, the defendants were acting under color of state law and within the scope of their employment by the New York City Police Department

60. Plaintiff was aware of his detention.

61. Plaintiff did not consent to being detained.

62. Plaintiff's detention was not privileged as the defendants executed a false accusatory instrument.

63. Plaintiff's detention was not privileged as the defendants lacked probable cause for all of his detention.

64. As a result of his illegal detention, the plaintiff's Fourth and Fourteenth Amendment rights were violated.

65. The aforesaid false arrest and imprisonment caused plaintiff to suffer severe physical injuries, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss

of freedom, loss of wages, legal expenses and damage to his reputation, all to plaintiff's damage, in an amount to be determined at trial plus punitive damages and attorney's fees.

**AS AND FOR A SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION
(AGAINST INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK)**

66. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

67. Defendants intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against the plaintiff in the Criminal Court of the City of New York, County of Queens, upon the filing of an accusatory instrument without probable cause.

68. In commencing and continuing the said malicious prosecution, Defendants caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

69. The plaintiff had not committed or attempted to commit any illegal acts.

70. The plaintiff had not given Defendants, its agents, servants and employees, probable cause to believe that he had committed the falsely charged illegal acts.

71. The defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that the said investigation into this matter was flawed and incomplete.

72. Defendants, its agents, servants and/or employees, willfully, negligently and wrongfully accused the plaintiff of having committed acts in violation of the Penal Law of the State of New York.

73. Defendants its agents, servants and employees, willfully, negligently and wrongfully continued to prosecute the plaintiff for alleged violations of the Penal Law of the

State of New York, even though the defendants knew or should have known of facts and circumstances that would have lead a reasonable persona to conclude that the criminal complaint, upon which said criminal prosecution was based, contained material falsehoods and was otherwise improper, and that the continued prosecution of Plaintiff was, therefore, improper under the circumstances.

74. The criminal prosecution against Plaintiff was dismissed on or about January 17, 2013 by a Judge of the Criminal Court of the City of New York, Queens County.

75. As a result of the malicious prosecution, the plaintiff was caused to suffer and continue to suffer severe emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of wages, legal expenses and damage to his reputation, all to plaintiff's damage, in an amount to be determined at trial plus punitive damages and attorney's fees.

**AS AND FOR A THIRD CAUSE OF ACTION:
EXCESSIVE FORCE UNDER FEDERAL LAW (1983)
(AGAINST INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK)**

76. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

77. The defendant police officer's use of force upon plaintiff, as described herein, and the individual defendant police officer's failure to intervene, was objectively unreasonable.

78. The aforesaid assault was carried out solely to inflict physical and mental harm upon plaintiff.

79. Accordingly, the police officers are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983, and the Fourth Amendment to the United States Constitution.

80. As a result, plaintiff was injured, internally and externally, became sick, sore, lame and disabled and was caused to suffer and still suffers severe and permanent injuries, and

will continue to suffer pain and discomfort; and was caused to obtain medical care and attention in an attempt to treat the aforesaid injuries.

**AS AND FOR A FOURTH CAUSE OF ACTION:
UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW (1983)
(AGAINST INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK)**

81. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

82. Defendants unlawfully stopped and searched plaintiff without a warrant, or consent.

83. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983, and the Fourth Amendment to the United States Constitution.

**AS AND FOR A FIFTH CAUSE OF ACTION:
MONELL CLAIM
(AGAINST INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK)**

84. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

85. Upon information and belief, it was the custom, policy and practice of the defendants to fail to terminate the prosecutions of individuals upon receipt of evidence which would vitiate any probable cause possessed at the time of arrest.

86. Employees of the New York City Police Department and the Queens County District Attorney's Office, such as the individual defendants in this action, were aware at all times alleged in this complaint that their unconstitutional conduct would not be investigated or questioned, and that they would receive no reprimand or be punished for their conduct.

87. Employees of the New York City Police Department and the Queens County District Attorney's Office, such as the individual defendants in this action, were aware at all times alleged in this complaint that their unconstitutional conduct would not be investigated or

questioned, and that they would receive no reprimand or be punished for their conduct and, further, that they would be indemnified from civil liability regardless of the illegality or unconstitutionality of their actions.

88. By failing to supervise, train and reprimand such Police Officers and Assistant District Attorneys, New York City caused the injuries to the plaintiff through the actions and inactions of individual defendants.

89. By maintaining a defacto Policy of automatic indemnification, New York City caused the injuries to plaintiff through the actions and inactions of individual defendants.

90. Upon information and belief, it was the custom, policy and practice of New York City to authorize and permit certain Police Officers and Assistant District Attorneys, including the individual defendants, to cause unlawful incarcerations.

91. Upon information and belief, it was the custom, policy and practice of New York City to encourage and cause constitutional violations by the Police Officers and Assistant District Attorneys employed by the City of New York, including the violations of plaintiff's constitutional rights by individual defendants.

92. New York City's failure to take action against its Police Officers and Assistant District Attorneys involved in this incident, and in other similar incidents, was part of a custom, practice and procedure of neglect and deliberate indifference that directly caused the injuries to plaintiff.

93. As authorized representatives of defendant New York City, the officers' conduct of illegal arrests, searches and seizure of arrestees, such as the plaintiff, constituted a custom, policy and policies which renders the defendant, New York City, liable to plaintiff as a "Person" acting under the color of state law.

94. These customs, policies and practices enforced by the defendants, were the

moving force, proximate cause, or affirmative link behind the conduct causing plaintiff's injuries.

95. Defendants are therefore liable for violations of plaintiff's constitutional rights as caused by its/their employees, as described in more detail in the paragraphs herein; and plaintiff has suffered damages therefrom.

96. As a proximate result of defendant's customs, policies and practices for creating an environment that tolerates, encourages, and condones such constitutional violations, the plaintiff was greatly humiliated, injured in his reputation, caused to incur attorney's fees, associated legal expenses, and other special damages, and has suffered great mental anguish causing damages, all to plaintiff's damage, in an amount to be determined at trial plus punitive damages and attorney's fees.

**AS AND FOR A SIXTH CAUSE OF ACTION:
VIOLATION OF PLAINTIFF'S SUBSTANTIVE DUE PROCESS
(AGAINST INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK)**

97. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

98. As a result of the facts alleged herein, plaintiff was denied his substantive rights under the United States Constitution.

99. As a proximate result of defendants' actions, plaintiff was greatly humiliated, injured in his reputation, caused to incur attorney's fees, associated legal expenses, and other special damages, and has suffered great mental anguish causing damages, all to plaintiff's damage, in an amount to be determined at trial plus punitive damages and attorney's fees.

**AS AND FOR AN SEVENTH CAUSE OF ACTION:
VIOLATION OF PLAINTIFF'S PROCEDURAL DUE PROCESS
(AGAINST INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK)**

100. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were

fully set forth at length herein.

101. The defendants initially incarcerated and continued the incarceration of plaintiff without a proper due process.

102. As a result of this incarceration, plaintiff was denied his procedural right under the United States Constitution.

103. As a proximate result of defendants' actions, plaintiff was greatly humiliated, injured in his reputation, caused to incur attorney's fees, associated legal expenses, and other special damages, and has suffered great mental anguish causing damages, all to plaintiff's damage, in an amount to be determined at trial plus punitive damages and attorney's fees.

**AS AND FOR A EIGHTH CAUSE OF ACTION
FAILURE TO SUPERVISE
(AGAINST INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK)**

104. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

105. Defendants were responsible for supervising, overseeing, and controlling their subordinates in the New York City Police Department and Queens District Attorney's Office.

106. As a proximate result of defendants' actions, plaintiff suffered severe physical injuries, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses and damage to his reputation all to plaintiff's damage, in an amount to be determined at trial plus punitive damages and attorney's fees.

**AS AND FOR A NINTH CAUSE OF ACTION
RESPONDEAT SUPERIOR
(AGAINST THE CITY OF NEW YORK)**

107. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

108. The individual defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against plaintiff, including but not limited to falsely arresting, assaulting, battering, and maliciously prosecuting plaintiff.

109. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE plaintiff demands a jury trial and judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to each of the above-stated causes of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against all defendants; together with costs and disbursements of this action and attorneys fees; and such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Dated: March 25, 2014
New York, New York

AMED MARZANO & SEDIVA PLLC

By:



Alexander Sediva, Esq.
Attorneys for the Plaintiff
65 Broadway, 7th Floor
New York, New York 10006
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Fax: (212) 981-3720
sediva@amslawpllc.com

VERIFICATION

STATE OF NEW YORK)

)

ss.:

COUNTY OF NEW YORK)

JONEL MOISE, being duly sworn, deposes and says:

1) I am the Plaintiff in the action herein.

2) I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof; the same is true to my own knowledge except as to those matters therein which are stated to be alleged on information and belief and as to those matters I believe it to be true.



JONEL MOISE

Sworn to before me this

25th day of MARCH 2014.


Notary Public

NAVED AMED
NOTARY PUBLIC-STATE OF NEW YORK
No. 02AM6235720
Qualified In New York County
My Commission Expires February 14, 2016

ATTORNEY CERTIFICATION

I, ALEXANDER SEDIVA, an attorney, hereby certify that to the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the within papers or the contentions therein are not frivolous within the meaning of 22 NYCRR § 130.1.1(c).

Dated: March 25, 2014

A handwritten signature in black ink, appearing to read 'A. Sediva', is written above a horizontal line.

ALEXANDER SEDIVA